

Lease Terms Cheat Sheet

- **Actual eviction:** The physical removal of the tenant, accomplished by legal process.
- **Assignment of lease:** The substitution of tenants, putting the responsibility for the lease contract in the new tenant's hands (although it doesn't fully relieve the former tenant from liability should the new tenant fail to pay). Most leases have language that an assignment requires the landlord's written permission.
- **Constructive eviction:** A situation in which the tenant is prohibited from quiet enjoyment of the premises and vacates.
 - In such cases, the tenant is evicted for all practical purposes because enjoyment of the premises is not available.
- **Covenant:** An agreement or promise made between the parties.
- **Estate at sufferance:** A type of possession in which a tenant stays after the right to possess has terminated.
- **Estate at will:** A type of leasehold estate in which the duration of the lease is unknown at the time it is created.
- **Estate for years:** A fixed termination type of lease that may be for a day, week, month, year, several years, or any definite period of time. When the specified date occurs, the lease terminates automatically.
- **Holdover tenant:** A tenant who refuses to leave after the expiration of a lease.
- **Lease:** A contract that transfers possession for consideration.
- **Leasehold estate:** The legal relationship between the parties who sign the lease. Grants possession, but not title, to the tenant, and is for a limited period of time.
- **Lessee:** Tenant
- **Lessor:** Landlord
- **Option to renew:** The right of a tenant to renew a lease upon the expiration of a lease period (seen frequently in commercial leases).
- **Periodic estate:** Involves possessory interest that's automatically renewed at the end of each period specified in the lease (e.g., month-to-month).
- **Quiet enjoyment:** A tenant's right to enjoy the property without being dispossessed or trespassed upon.
- **Security deposit:** A sum provided by a tenant to a landlord to cover extraordinary expenses or unpaid rent when a tenant vacates.
- **Self-help eviction:** Illegal eviction in which the landlord has taken matters into his own hands and evicts the tenant without using legal procedures.
- **Sublease:** An agreement for a new occupant to live in the premises and pay rent to the former tenant, who pays the landlord.
 - Requires landlord's written permission; doesn't relieve the former tenant from liability.